

HINDUSTAN COPPER LIMITED
CORPORATE OFFICE

HCL/HR/17/6

Dated : 30.08.2011

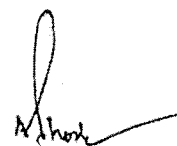
OFFICE ORDER

Sub : Scheme for Awarding Jobs Through Contractual Appointment On
Full Time Fixed Tenure Basis

The 'Scheme for Awarding Jobs Through Contractual Appointment On Full
Time Fixed Tenure Basis' is enclosed.

The Scheme shall be effective from 30th August, 2011.

This issues with the approval of the Competent Authority.



(Abhijit Ghosh)
Chief Manager (HR)

Distribution

- i) CMD
- ii) D(Op)/D(P)/D(Mining)/D(F)
- iii) CVO
- iv) ED/KCC
- v) GM/ICC
- vi) DGM/MCP
- vii) AGM/TCP
- viii) CM(Mkt)/Delhi
- ix) CM(Mkt)/Bengaluru
- x) General Secretary of the Officers' Association
- xi) General Secretary of the Recognised Unions

Hindustan Copper Limited
**Scheme For Awarding Jobs Through Contractual Appointment
On Full Time Fixed Tenure Basis**

1. Objective

The policy provides for engagement of retired personnel on Fixed Tenure Contract Basis as a temporary measure to meet specific job requirements of limited duration which cannot be handled by the regular employees of the Company for want of requisite expertise or due to manpower turnover.

2. Scope

Candidates retired from the services of PSUs including Hindustan Copper Limited or Government / Semi-Government organizations including Defence Service or Private organization of repute, in that order of preference, shall only be considered for this purpose.

3. Appointment Under The Scheme

Appointment under the Scheme shall be regulated as under.

- (a) Appointment under the Scheme against regular vacancies shall be resorted to only if the post advertised remains unfilled after completion of due process of regular appointment as prescribed in the respective Recruitment Rules.
- (b) Appointment may also be made under the Scheme for jobs not likely to continue for limited duration, i.e., not exceeding five years.

4. Age Limit

The individuals engaged in such assignments can continue upto the age of 65 years. However, the age limit for application shall be 63 years on the date specified in the advertisement issued for the purpose.

5. Duration of Contract Assignment

The tenure of contract shall be co-terminus with the completion of the specified assignment unless stated otherwise. It can be upto one year at a time. It can be extended based on the needs of the organisation and satisfactory performance of the

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individual. The total duration of such engagement shall in no case be more than FIVE years and shall be subject to the prescribed upper age limit of 65 years.

6. Specified Purpose

The contract on fixed tenure basis shall be awarded on specific job assignment basis. The smallest identifiable unit of work for which the services of the incumbent shall be used shall be deemed to be a project. The roles and responsibilities of the incumbents shall be specified in sufficient detail. The terms and conditions of engagement shall *inter alia* specify details of jobs to be undertaken, duration of the assignment, mode and quantum of payment (remuneration), maintenance of secrecy/confidentiality, mechanism of resolution of disputes, details of facilities, if any, to be provided, etc.

7. Eligibility Requirements

To be considered for appointment under the Scheme, candidates shall possess appropriate qualification and at least twenty years' relevant experience in related field.

8. Competent Authority

The authority competent to approve appointment under the Scheme shall be as under.

- (a) The authority competent to approve in-principle the proposals for awarding jobs under the Scheme shall be the Chairman-cum-Managing Director of the Company. For this purpose, a comprehensive proposal delineating specific requirements as detailed in the above Para along with the assessment of the Unit IED, shall be submitted by the respective Unit / Department Head for approval through the concerned Functional Director.
- (b) The authority competent to approve final selection for awarding jobs under the Scheme corresponding to positions in E-5 to E-9 Grades of Executive positions shall be the Chairman-cum-Managing Director. For positions below E-5 Grade, the powers shall be with the Unit Heads.
- (c) However, if the requirements for similar assignments below E-5 Grade of more than one Unit are clubbed together for such appointment, the same may be

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conducted centrally at the Corporate level. In such cases, the authority competent to approve final selection shall be the Chairman-cum-Managing Director.

9. Advertising The Requirement

- (a) For selecting suitable candidates for awarding jobs under the Scheme, the requirement shall be advertised. The full (complete) advertisement shall be web hosted on the Company's website. Window Advertisement shall be published in at least in two Newspapers with wide circulation so as to give wide publicity. The selection of newspapers for this purpose shall be decided by the approving authority depending upon the nature of the job to be awarded, likely locations for sourcing resource, etc., and shall form part of the proposal submitted for approval of the Competent Authority.
- (b) Corrigendum to the advertisement, if any, shall only be web hosted on the Company's website and the detailed advertisement issued initially shall contain a mention to this effect.

10. Processing of Application & Final Selection

The applications received in response to the advertisement shall be processed at the respective Unit for positions corresponding up to E-4 Grade; and at the Corporate level for E-5 and above Grades as well as where requirements of more than one Unit are clubbed together.

11. Selection Process

The applications received shall be scrutinized with reference to the advertised eligibility criteria and those meeting the eligibility criteria shall be shortlisted. A duly constituted Selection Committee shall interview the short-listed candidates to decide suitable candidate. Walk-in Interviews may also be held wherever deemed necessary.

12. Panel

A panel of suitable candidates may also be made based on the outcome of the selection interviews in order to meet exigencies or future requirements. The validity

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of the panel may be limited to six months. The validity of the panel may be renewed for another six months with the approval of the Chairman-cum-Managing Director for reasons to be recorded in writing.

13. Constitution of Selection Committee

The Selection Committee for the purpose shall consist of the following.

(i) For positions advertised by Unit (upto E-4 level):

- i. Unit Head
- ii. Unit HR Head
- iii. Unit Finance Head
- iv. Respective Departmental Head (Not below AGM/E-6)

(ii) For positions advertised by Corporate Office & Posts in E-5 level and above

- i. Director (Personnel)
- ii. Concerned Functional Director
- iii. Another Functional Director nominated by CMD

However, for posts corresponding to E-7 and above levels, the CMD shall also be associated with the respective Selection Committee.

14. Remuneration

The candidates awarded jobs under the Scheme shall be eligible for the following remuneration package.

(a) Monthly Emolument

- (i) This shall normally correspond to the commencing Basic Pay of the equivalent regular Scale of Pay of the respective Grade rounded-off to the next nearest multiple of Rs.500/- as detailed in Table-1 and Table-2 below.

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Table-1: For corresponding Executive Grades

Corresponding Grade of Post	Consolidated Monthly Emoluments (Rs.)	Corresponding Grade of Post	Consolidated Monthly Emoluments (Rs.)
E-9	62,000	E-4	29,500
E-8	51,500	E-3	25,000
E-7	51,500	E-2	21,000
E-6	43,500	E-1	16,500
E-5	37,000	E-0	13,000

Table-2: For corresponding Non-Executive Grades

Corresponding Grade of Post	Consolidated Monthly Emoluments (Rs.)	Corresponding Grade of Post	Consolidated Monthly Emoluments (Rs.)
T-10	12,500	T-6	11,000
T-8	11,500	T-5	10,500
T-7	11,500	T-4	10,000

(ii) In the case of retired Central / State Government employees, the monthly emoluments shall be so fixed that the sum total of monthly emolument and Pension received does not exceed the last pay drawn by the concerned individual.

(iii) In case of retired PSU employees, the monthly emoluments shall be as detailed in Table-1 / Table-2 or last drawn Basic Pay whichever is higher.

(b) Other Benefits

(i) The reimbursement of conveyance expenses for local travel for official purposes shall be paid @ 15% of the monthly emolument.

(ii) The following benefits shall be admissible at par with regular employees of HCL of the corresponding grade.

- i. Unfurnished Company's accommodation at normal rent and electricity, subject to availability. House Rent Allowance @ 10% of the Monthly Emolument shall be payable where housing accommodation is not provided by HCL.

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- ii. TA / DA for performing journey for official work. However, travel by air shall be allowed only to those in assignment in the grade corresponding to E-7 (DGM) and above in HCL.
 - iii. Medical facility for OPD and Inpatient treatment for self and spouse only. However, referral facilities to outside specialised hospitals shall not be admissible.
 - iv. Reimbursement of monthly Rental and Call Charges for Mobile/Land Line phones.
 - v. Twelve (12) days' Casual Leave for each calendar year and on pro-rata basis for part thereof.
- (iii) No deduction on account of Provident Fund shall be effected.
 - (iv) The provisions of Income Tax Act 1961 shall be applicable.

15. Termination Of Contract

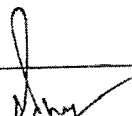
- (a) The contract shall stand terminated at the end of the term specified therein or on the completion of the project / assignment or on attaining the age of 65 years whichever event occurs earlier.
- (b) The contract may also be terminated by either side by giving one month's notice, the Company retaining the option to pay / accept an amount equivalent to the monthly emolument in lieu thereof.

16. Miscellaneous

- (a) The candidates awarded jobs under the Scheme must possess required qualification and experience in relevant fields.
- (b) The appointment shall be subject to Medical fitness to be certified by Company / Government Medical Officer.

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- (c) The incumbents shall not have any delegated financial powers nor shall they sign or certify documents or pass bills etc. pertaining to the Department.
- (d) The incumbents shall maintain integrity and secrecy in respect of the Company's business and shall not engage with any other business during the period of engagement under the Scheme and shall perform the assigned duties with due diligence.
- (e) In matters of discipline, they shall be governed by the Company's Conduct, Discipline & Appeal Rules.
- (f) A person can be appointed to a lower position than one from which retired but not vice-versa.
- (g) The Appointing Authority may prescribe certain additional conditions relevant to the duties and responsibilities specific to the job/assignment as may be deemed necessary.
- (h) The services of the incumbents may be utilised on similar projects/assignments at other locations / Units of the Company during the currency of the contract if deemed necessary.
- (i) An assignment under the Scheme shall not create any claim in future for employment or assignment in HCL in any manner.
- (j) The period of contract under the Scheme shall neither be counted nor qualify for the purpose of any cessation / retiral benefits.
- (k) Candidates awarded assignments under the Scheme shall be required to submit self-attested photocopies of their academic / experience / retirement / pension and last pay certificate (wherever applicable) certificates and present the original for verification at the time of interview.
- (l) Any absence beyond the stipulated period of leave shall involve pro-rata deduction from the monthly emoluments for each day of absence.



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- (m) The individuals appointed under this Scheme shall be required to daily mark their attendance in the register maintained for the purpose or record their attendance through biometric machines wherever installed, as per rules of the Company.
- (n) Company transport, subject to availability, shall be provided for local travel beyond 8 Kms from the Headquarters.
- (o) A person against whom a disciplinary or criminal proceeding is pending shall not be eligible for such engagement.

17. Savings

The above provisions of the Scheme can be modified, altered or withdrawn at the discretion of the Chairman-cum-Managing Director.

18. Commencement

This Scheme shall come into force with effect from 30th August 2011.

HINDUSTAN COPPER LIMITED
CORPORATE OFFICE
KOLKATA

No.HCL/HR/17/6

21/05/2012

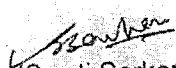
OFFICE ORDER

**Sub: Amendment to HCL Scheme for Awarding Jobs Through
Contractual Appointment On Full Time Fixed Tenure Basis**

Further to Office Order of even No. dated 30.08.2011, Clause 3 (b) of HCL Scheme for Awarding Jobs Through Contractual Appointment On Full Time Fixed Tenure Basis is amended and substituted as under with immediate effect.

Existing Provision	Amended Provision
Clause 3. Appointment Under The Scheme (b) Appointment may also be made under the Scheme for jobs not likely to continue for limited duration, i.e., not exceeding five years.	Clause 3. Appointment Under The Scheme (b) Appointment may also be made under the Scheme for jobs likely to continue only for limited duration, i.e., not exceeding five years.

This issues with the approval of the Competent Authority.


(Swati Sarkar)
Dy.Manager(HR)

Distribution:

1. CMD
2. D(OP)/D(P)/D(Ming.)/D(F)
3. CVO
4. DGM / KCC, DGM / MCP, DGM / ICC
5. AGM/TCP
6. RM / Delhi, RM / Bengaluru
7. General Secretary of the Officers' Association
8. General Secretary of the Recognised Unions